

		declaration/affidavit is sufficient and therefore the request for an order to show cause is GRANTED as more fully set forth below. Finally, Petitioners again request attorney fees as a sanction under Code of Civil Procedure section 128.5. That request is again DENIED WITHOUT PREJUDICE. Respondent's conduct in disregarding the court's order have not yet been proven to be in bad faith or solely for purposes of delay. Moreover, there may be other more appropriate authority for the sanctions request, such as Code of Civil Procedure section 1218, subdivision (a), addressing contempt, or Code of Civil Procedure section 1281.99. Based on the foregoing, the court will issue an order to show cause directing Respondent to appear on <u>Thursday, October 22, 2026, at 2:00 p.m., in Department C23</u>, to show cause as to why it should not be held in contempt of court for failing to comply with the courts March 19 and 26, 2026 orders. Respondent's evidentiary objections (ROA 99) are OVERRULED. Petitioners are ordered to give notice and submit a proposed order to show cause consistent with this ruling.
10.	<i>Martinez vs. FEIZ-EKBATANI</i> <i>2016-00884642</i>	Before the court is the Motion to Enforce Settlement Agreement filed by plaintiff Gerald Martinez (Plaintiff) against defendants Mehrdad Feiz-Ekbatani, Airmobile Technologies, Inc., and Coupzilla, Inc. (collectively, Defendants). As more fully set forth below, the motion is DENIED. This motion is brought pursuant to Code of Civil Procedure section 664.6. Plaintiff and Defendants have entered into three different agreements to resolve their disputes. The First Agreement was entered into February 21, 2017. The Second Agreement was entered into June 1, 2018. The Third Agreement was entered into March 3, 2025. The Third Agreement is referred to as a "first amendment to the second settlement agreement" and attached as Exhibit 4 to the Hall Declaration. Here, the motion states, "Plaintiff hereby moves the Court for entry of a money judgment against the Revised Defendants in the amount of \$89,000 plus an award of attorneys' fees and costs in the amount of \$9,864 in accordance with the terms of the Amendment. (Hall Decl., ¶¶ 16, 17.) [¶] Revised Defendants clearly failed to adhere to the payment schedule as set forth in the Amendment, which provides for the payment of \$174,000

		from Defendants to Plaintiff on a definite schedule.” (Motion at p.5, Ins. 3-8.) Plaintiff further states Defendants partially performed under the Third Agreement but then defaulted. (Hall Declaration ¶11.) Plaintiff also states Defendants failed to comply with his demand for payment under the terms of the Third Agreement. (Hall Declaration, ¶13, Exh. 5.) The court dismissed this case without prejudice on August 31, 2018, after Plaintiff filed a notice of settlement of entire case and then all parties failed to appear at two separate order to show cause hearings regarding the dismissal of settled case. Code of Civil Procedure section 664.6 creates an expedited procedure for the enforcement of settlements reached among the “parties to pending litigation.” It does not apply to agreements reached before an action is filed or after judgment has become final. (<i>Kirby v. Southern California Edison Co.</i> (2000) 78 Cal.App.4th 840, 845; <i>Walton v. Mueller</i> (2009) 180 Cal.App.4th 161, 172.) Section 664.6 only applies to agreements reached during pending litigation. This case was not pending when the parties entered into the Third Agreement on March 3, 2025, and therefore section 664.6 does not apply. Section 664.6, subdivision (e), is of no assistance to Plaintiff because it was enacted years after the court dismissed this case. Moreover, it addresses the question of retention of jurisdiction, it does not address the requirement that the agreement to be enforced be reached among parties to pending litigation. Based on the foregoing, the motion is DENIED. In denying the motion, the court does not express any opinion on the enforceability of the Third Agreement in general. The court simply concludes section 664.6 is not available to enforce the Third Agreement because this case was not pending when the parties reached that agreement. Plaintiff is free to seek to enforce the Third Agreement through a new lawsuit based on that agreement. Plaintiff’s counsel is ordered to give notice of this ruling.
11.	<i>Shalika vs. BMW of North America, LLC</i> 2025-01470449	Before the court is the motion for attorney fees filed by plaintiffs Ahmad S. Shalika and Malalai Shalika (collectively, Plaintiffs) seeking attorney fees, costs, and expenses incurred from case initiation through settlement and including the fee motion. As more fully set forth below, the motion is GRANTED, and Plaintiffs are awarded attorney fees in the total amount of \$16,410.00 and costs